

HOUSE BILL 2197

By Gant

AN ACT to amend Tennessee Code Annotated, Title 63
and Title 68, relative to health care.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 63-1-130(b), is amended by deleting subdivision (3) and substituting:

(3) Prior to submitting the application necessary to obtain a license, certification, or registration, an individual may request in writing or electronically a notice from the licensing authority from which the individual seeks to obtain a license, certification, or registration concerning the individual's qualification to obtain the license, certificate, or registration, based on the individual's criminal history. If the licensing authority determines that an individual is disqualified due to the individual's criminal history, the licensing authority must provide the individual with a written notification that sets forth the reasons for its determination and its justification in accordance with subdivision (b)(4)(A). The notice as to the individual's qualifications to obtain a license, certificate, or registration must be limited to the individual's criminal history and should not be construed as prohibiting the licensing authority from denying an application on other grounds. This determination applies exclusively to the individual and is not an advisory or formal opinion of the licensing authority.

SECTION 2. Tennessee Code Annotated, Section 63-1-130(c), is amended by deleting "written" and substituting "written or electronic".

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.